



CHAPTER cix.

An Act to authorise the mayor aldermen and citizens of the city of Nottingham and county of the same city to construct street works a railway and tramways to provide and work trolley vehicles on further routes to extend the Corporation's water limits to provide for the establishment of a yarn and textile testing bureau by University College Nottingham to confer further powers on the Corporation with regard to the good government of the city and for other purposes. A.D. 1925.

[7th August 1925.]

WHEREAS the city of Nottingham and county of the same city (in this Act called "the city") is under the municipal and local government of the mayor aldermen and citizens of the city and county (in this Act referred to as "the Corporation"):

And whereas it is expedient that the Corporation should be empowered to make and maintain the street works referred to in this Act:

And whereas it is expedient to empower the Corporation to construct the railway described in this Act:

And whereas it is expedient to empower the Corporation to construct and work the additional tramways described in this Act and to authorise them to provide and work trolley vehicles on the further routes described in this Act:

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And whereas it is expedient to extend the limits of the Corporation for the supply of water as by this Act provided :

And whereas the city of Nottingham is an important centre of trades using yarns fabrics and similar articles and large quantities of yarns fabrics and similar articles are sold there and articles of which they form a part are prepared and manufactured in the city for sale therein and for exportation abroad and the trade and manufacture of such articles is of considerable magnitude :

And whereas disputes and differences arise in connection therewith and persons engaged in the said trades and manufactures are desirous that a yarn and textile testing bureau should be established in the city in order that the true weight condition length strength and twist of yarns fabrics and similar articles may be ascertained and certified by some independent public body duly authorised in that behalf :

And whereas laboratories and engineering shops in connection with technical instruction in the trades and manufactures dealing in such yarns fabrics and similar articles have been established at University College in the city (the court of governors of which consists of the president and vice-presidents of the said college and the mayor aldermen and citizens of the city) and it is expedient that the said college should undertake the duties hereinbefore indicated subject to the powers and provisions in this Act contained :

And whereas it is expedient that the powers of the Corporation with regard to the health and good government of the city should be extended as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

(a) For the purchase of lands for and the	£
construction of the street works and	
the laying out of Queen's Walk as a	
road authorised by this Act	254,290

	£	A.D. 1925.
(b) For the purchase of lands for and the construction of the railway authorised by this Act - - - -	7,250	
(c) For and in connection with the construction of the tramways authorised by this Act - - - -	52,407	
(d) For the provision of rolling stock for such tramways - - - -	47,000	
(e) For the provision of trolley vehicles -	56,500	
(f) For the electrical equipment of such tramways and trolley vehicles - -	21,555	
(g) For and in connection with the extension of water mains and the provision of water pipes and apparatus - -	10,000	

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Minister of Health has been obtained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the county of Nottingham and for the county of the city of Nottingham respectively and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Nottingham Short title, Corporation Act 1925.

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Division
of Act
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Street works.

Part IV.—Railway.

Part V.—Tramways trolley vehicles and
omnibuses.

Part VI.—Extension of water limits.

Part VII.—Establishment of yarn and textile
testing bureau by the college.

Part VIII.—Police hackney carriages &c.

Part IX.—Maternity homes.

Part X.—Financial and miscellaneous pro-
visions.Incorporation of
Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following exception and modification—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section:

(2) The Railways Clauses Consolidation Act 1845 (except sections 107 and 143):

(3) Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863:

(4) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) Part II. and Part III. of the Tramways Act 1870 Provided that—

(a) the words in section 19 of that Act
“but nothing in this Act contained shall

“ authorise any local authority to place or
 “ run carriages upon such tramway and to
 “ demand and take tolls and charges in
 “ respect of the use of such carriages ” shall
 not apply to the Corporation : A.D. 1925.

(5) The Waterworks Clauses Act 1847 except—

(a) The words “ with the consent in writing
 “ of the owner or reputed owner of any such
 “ house or of the agent of such owner ” in
 section 44 of the Waterworks Clauses Act
 1847 ;

(b) Sections 75 to 82 of the Waterworks
 Clauses Act 1847 with respect to the amount
 of profit to be received by the undertakers
 when the waterworks are carried on for their
 benefit and section 83 relating to accounts :

(6) Sections 13 to 21 of the Waterworks Clauses
 Act 1863.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation of terms.

(2) In this Act unless the subject or context otherwise requires—

The expressions “ the Corporation ” “ the city ”
 “ the town clerk ” “ the district fund ” and
 “ the general district rate ” have the meanings
 assigned to them respectively by section 3
 (Interpretation) of the Act of 1905 ;

“ The council ” means the council of the city ;

“ The mayor ” means the mayor of the city ;

“ The Act of 1845 ” “ the Order of 1877 ” “ the
 Act of 1879 ” “ the Act of 1897 ” “ the Act
 of 1899 ” “ the Act of 1902 ” “ the Act of
 1905 ” “ the Act of 1910 ” “ the Act of 1913 ”
 “ the Act of 1920 ” and “ the Act of 1923 ”
 mean respectively the Act, 8 & 9 Victoria c. 19

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the Nottingham and District Tramways Order 1877 the Nottingham Improvement Act 1879 the Nottingham Improvement Act 1897 the Nottingham Corporation Act 1899 the Nottingham Corporation Act 1902 the Nottingham Corporation Act 1905 the Nottingham Corporation Act 1910 the Nottingham Corporation Act 1913 the Nottingham Corporation Act 1920 and the Nottingham Corporation Act 1923;

“The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“Trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source;

“The college” means the University College of Nottingham;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Hackney carriage” has the same meaning as in the Town Police Clauses Act 1847 and does not include an omnibus as defined in the Town Police Clauses Act 1889;

“Maternity home” means any premises in the city used or represented as being or intended to be used (whether regularly or on any occasion) for the reception of a woman or women for the purposes of or in connection with or arising out of pregnancy or childbirth where any payment or reward is made or given by or on behalf of any woman received therein in respect of such reception but does not include any house flat or other self-contained premises not regularly so used taken and held by or on behalf of any woman for the purpose of accommodating her during her confinement.

PART II.

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LANDS.

5. Subject to the provisions of this Act the Corporation may enter upon take and use for and in connection with the purposes of this Act and (in the case of the making widening or improving of any street or road) for providing space for the erection of buildings adjoining or near to such street or road all or any part of the lands delineated on the deposited plans and described in the deposited book of reference.

Acquisition
of lands.

6. Subject to the provisions of this Act the Corporation may enter upon take and use for the purpose of improving St. Peter's Street the lands occupied partly by a weighing machine and numbered 504 505 and 506 in the city on the deposited plans.

Acquisition
of land in
St. Peter's
Street.

7. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
of lands.

8. The following sections of the Acts of 1897 1905 and 1910 are incorporated with this Act and shall extend and apply in regard to the works and lands authorised to be executed and taken under this Part and Part III. (Street works) Part IV. (Railway) and Part V. (Tramways trolley vehicles and omnibuses) of this Act as if those sections with the necessary modifications were set forth in this Act (namely):—

Incor-
poration
of sections
from Acts
of 1897
1905 and
1910.

Act of 1897—

Section 6 (Correction of errors &c. in deposited plans and book of reference);

Section 8 (Persons under disability may grant easements &c.);

Section 13 (Proceeds of sale of surplus lands).

Act of 1905—

Section 39 (Owners may be required to sell parts only of certain lands and buildings).

Act of 1910—

Section 17 (Provisions as to compensation);

Section 19 (Power to purchase additional lands by agreement):

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Provided that in the application of section 39 of the Act of 1905 that section shall be read and have effect as if the properties described in the schedule to this Act were therein referred to instead of the properties mentioned in the schedule to the Act of 1905 and as if the tribunal referred to in the said section were the tribunal as defined by the section of this Act of which the marginal note is "Interpretation of terms":

Provided also that in the application of section 17 of the Act of 1910 that section shall be read and have effect as if the twentieth day of November nineteen hundred and twenty-four were therein referred to instead of the first day of January nineteen hundred and ten.

For protec-
tion of
Thomas
Lewis
Kekewich
Edge and
others.

9. For the protection of Thomas Lewis Kekewich Edge of Strelley Hall in the county of Nottingham (in this section referred to as "the owner") and of Sir Charles Hilton Seely Baronet and Colonel Frank Evelyn Seely of the Babbington Collieries Nottingham (in this section together referred to as "the colliery company") and their respective executors administrators and assigns the following provisions shall notwithstanding anything contained in this Act or shown upon the deposited plans apply and have effect (that is to say):—

(1) The Corporation shall not unless otherwise agreed in writing between them on the one hand and the owner and the colliery company on the other hand acquire or take any part of the premises of the owner and the colliery company shown upon the deposited plans other than that coloured pink on the plan signed in duplicate by the owner by Messrs. Enfield and Son on behalf of the colliery company and by Thomas Wallis Gordon on behalf of the Corporation:

(2) The Corporation shall not enter upon or interfere with the library and institute now situate on the lands of the owner and the colliery company until the Corporation at their own expense shall have erected on lands to be provided for the purpose by the owner a new library and institute in substitution therefor reasonably equivalent as regards accommodation and situation to the existing library and

institute or in the alternative and at the option of the Corporation until the owner shall have erected such a library and institute as aforesaid and the Corporation shall have paid to the owner the sum of two thousand five hundred pounds for that purpose. A.D. 1925.

10. For the protection of John Morris or other the owner for the time being of the lands hereinafter in this section mentioned (in this section called "the owner") the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans and unless otherwise agreed in writing between the Corporation and the owner apply and have effect (that is to say):— For protec-
tion of John
Morris.

(1) The Corporation shall not enter upon take or use any part of the lands numbered on the deposited plans 476 in the parish of Nottingham:

(2) The Corporation shall not enter upon take or use any greater or less part of the lands numbered on the deposited plans 474 475 477 and 478 in the said parish than that coloured pink and blue on the plan signed in quadruplicate by the said John Morris and by Thomas Wallis Gordon on behalf of the Corporation and countersigned by the Right Honourable George Herbert Villiers Earl of Clarendon the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Private Bill Office of the House of Commons and another copy in the Parliament Office House of Lords.

PART III.

STREET WORKS.

11. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works hereinafter mentioned Power to
make street
works.

A.D. 1925. together with all necessary approaches junctions abutments embankments arches steps sewers drains culverts works and conveniences connected therewith or incidental thereto.

The street works hereinbefore referred to and authorised by this section are—

In the city:—

Street Work No. 1 A widening of Main Street on the east side;

Street Work No. 2 A widening of Main Street Coventry Road and Cinderhill Road on the east sides;

Street Work No. 3 A widening of Main Street on the west side;

Street Work No. 4 A widening of Coventry Road and Cinderhill Road on the west sides;

Street Work No. 5 A widening of Nuthall Road on the north-east side from the west side of the Cinderhill Institute to a point about 166 feet south-east of the south-east side of Dark Lane;

Street Work No. 6 A widening of Nuthall Road on the north-east side between points respectively 305 feet or thereabouts and 386 feet or thereabouts south-east of the intersection of the centre lines of Nuthall Road and Dark Lane;

Street Work No. 7 A widening of Nuthall Road on the north-east side from a point about 440 feet south-east of the south-east side of Overdale Road to a point about 348 feet south-east of the south-east side of Bar Lane;

Street Work No. 8 A widening of Nuthall Road on the north-east side from the south-east corner of the entrance to No. 400 Nuthall Road to a point 160 feet or thereabouts south-east of the said corner;

Street Work No. 9 A widening of Nuthall Road on the north-east side from High Street to Whitemoor Road;

Street Work No. 10 A widening of Nuthall Road on the south-west side between points respectively about 495 feet and 1,040 feet south-east of the intersection of the centre lines of Nuthall Road and Cinderhill Road; A.D. 1925.

Street Work No. 11 A widening of Nuthall Road on the south-west side from a point about 155 feet south-east of the intersection of the centre lines of Nuthall Road and Dark Lane to Broxtowe Lane;

Street Work No. 12 A widening of Nuthall Road on the south-west side from a point about 80 feet north-west of the intersection of the centre lines of Nuthall Road and Bar Lane to a point opposite High Street;

Street Work No. 13 A widening of Nuthall Road on the south-west side from a point about 220 feet north-west of the intersection of the centre lines of Nuthall Road and Whitemoor Road to a point about 75 feet north-west of the intersection of the centre lines of Nuthall Road and Chapel Street;

Street Work No. 14 A widening of Upper Parliament Street on the south side and of Market Street on the west side;

Street Work No. 15 A widening of Fairfax Street on the north-east side and Radford Road on the north-west side;

Street Work No. 16 A new street and an improvement of Bar Lane from Nuthall Road to Percy Street;

Street Work No. 17 A widening of Beeston Road on the north-west side between points about 240 feet south-west and about 210 feet north-east respectively of the intersection of the centre lines of Beeston Road and Greenfield Street;

Street Work No. 18 A widening of Beeston Road on the north-west side from Lace Street to Abbey Lane;

Street Work No. 19 A widening of Beeston Road on the south-east side from a point about 140 feet south-west of the south-west side of Lace Street to Lace Street;

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Street Work No. 20 A widening of Beeston Road on the south-east side between Lace Street and Montpelier Road;

Street Work No. 21 A widening of Sneinton Dale on the south-east side;

Street Work No. 22 A widening of Canning Street on the north-east side and Talbot Street on the north-west side;

Street Work No. 23 A new street from the south-east side of Sneinton Dale to the boundary between the city and the parish of Colwick.

In the urban district of West Bridgford:—

Street Work No. 24 A widening and improvement of the south-eastern approach of the Trent Bridge.

Limits of deviation.

12. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

Power to lay out central avenue of Queen's Walk for vehicular traffic.

13. Notwithstanding anything contained in the Act passed in the session of Parliament holden in the eighth and ninth years of the reign of Her Majesty Queen Victoria intituled "An Act for enclosing lands in the " parish of Saint Mary in the town and county of the " town of Nottingham " or in the inclosure award made in pursuance of that Act the Corporation may lay out and maintain the central avenue of the walk known as Queen's Walk in the city as a road for vehicular traffic.

Incorporation of sections from Act of 1920.

14. The following sections of the Act of 1920 are incorporated with this Act and shall extend and apply with regard to the street works authorised by this Part of this Act and the laying out of the central avenue of Queen's Walk as a road for vehicular traffic as if those sections with the necessary modifications were set forth in this Act and particularly as if the deposited plans referred to in those sections or some of them were the deposited plans (namely):—

Section 32 Subsidiary works;

Section 33 Power to alter steps pipes areas &c.;

Section 34 Temporary stoppage of streets.

15. For the protection of the London and North Eastern Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say):—

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For protec-
tion of
London
and North
Eastern
Railway
Company.

(1) Except as hereinafter mentioned the Corporation shall not without the consent in writing of the company enter upon take use or interfere with any railway or property of the company but they may purchase and take and the company shall grant such right or easement over upon or in respect of any lands or property of the company delineated on the deposited plans as shall be necessary for the purpose of the construction and use of Street Work No. 21 (a widening of Sneinton Dale on the south-east side) by this Act authorised. The amount to be paid for the acquisition of such easement shall be ascertained in case of difference subject to the provisions of this Act in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement and the easement or right so to be taken shall be deemed to be land so far as respects the proceedings for the acquisition thereof and also for the purposes of any arbitration :

(2) The extension and alteration of the company's bridge over Sneinton Dale if any such extension and alteration shall be rendered necessary by the construction of Street Work No. 21 shall be made by the Corporation under the direction and superintendence and to the reasonable satisfaction of and at such times and in such manner as the engineer of the company may reasonably require and in accordance with plans drawings and specifications previously submitted to and reasonably approved by him and the Corporation shall not in the construction and maintenance of the said works endanger or interfere with the safe user of the company's railway or interrupt the traffic thereon and the Corporation shall during the construction of the said works execute all such temporary works as

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the said engineer may require for the purpose of avoiding risk to the railway or interruption to the traffic thereon and they shall pay and make good to the company all loss and damages and all expenses which the company shall sustain or be put to by reason of or incurred in connection with or arising out of the construction or maintenance of the said works (including the costs of superintendence watching and signalling) :

- (3) The Corporation shall bear and pay the amount by which the cost incurred by the company in maintaining the altered bridge as certified by the company's engineer exceeds the cost which would from time to time have been incurred by the company in maintaining the existing bridge :
- (4) Notwithstanding anything contained in the section of this Act of which the marginal note is "Limits of deviation" the Corporation shall not in constructing the said Street Work No. 21 where it affects the company's railway deviate without the consent in writing of the company from the line of the street widening as shown on the deposited plans or from the levels as shown upon the deposited sections :
- (5) If the company give to the Corporation notice that the company desire to carry out the whole or any part of the work of extending or altering their bridge over Sneinton Dale as aforesaid or to carry out such temporary works as are necessary in connection therewith the Company may themselves execute any such works as are referred to in such notice and may recover from the Corporation the reasonable cost incurred by them in so doing The Corporation shall afford to the company every facility including the temporary provision of such land as may be required by the company for the temporary diversion of the company's lines of railway while the alteration of the company's bridge is being carried out :
- (6) If by reason of or during the construction of the said street widening it shall become necessary in the opinion of the said engineer to add to or alter

any signal or signalling apparatus on the railway of the company the same shall be so added to or altered by the company and the reasonable expense thereof shall be repaid by the Corporation to the company:

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(7) If the company in the exercise of their existing powers shall at any time after the construction of the said street widening desire to widen alter or extend their railway or any of the works or conveniences connected therewith the Corporation shall give to the company every reasonable facility for the execution of such widening alteration or extension and any additional expense to which the company may be put in carrying out any such widening alteration or extension by reason of the construction of the said street works shall be repaid to them by the Corporation:

(8) If any difference shall arise between the Corporation and the company under the foregoing provisions of this section except subsection (1) hereof such difference shall be determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

16. For the protection of the London Midland and Scottish Railway Company (hereinafter referred to as "the company") the following provisions shall unless otherwise agreed be observed and have effect:—

For protection of London Midland and Scottish Railway Company.

(1) Notwithstanding anything in this Act contained or shown on the deposited plans and sections the Corporation shall not without the previous consent in writing of the company under their common seal purchase or acquire any lands or property belonging to the company but the Corporation may purchase and take and the company shall sell and grant accordingly an easement or right of using so much of their lands as may be necessary for the construction of Street Works Nos. 2 and 4 by this Act authorised:

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The amount to be paid for the acquisition of such easement shall be ascertained in case of difference subject to the provisions of this Act in the manner provided by the Lands Clauses Consolidation Acts with respect to the purchase of lands otherwise than by agreement and the easement or right so to be taken shall be deemed to be land so far as respects the proceedings for the acquisition thereof and also for the purposes of any arbitration :

- (2) The Corporation shall before they commence the construction of so much of the said street works and all works in connection therewith as shall or may pass under or in any way affect the railway property or works of the company (hereinafter called "the said railway") submit to the principal engineer of the company (hereinafter called "the principal engineer") proper and sufficient plans sections and specifications of the said street works proposed to be carried out by the Corporation for the reasonable approval of the principal engineer and also proper and sufficient plans showing the stages by which it is intended to carry out the said street works for the like approval :

Provided that if such principal engineer shall for the space of one month neglect or refuse to approve the said plans sections and specifications or shall disapprove the same and in case of the principal engineer and the city engineer of the Corporation failing to agree or of any difference arising between them then the said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject to the special provisions of this section) by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either the Corporation or the company and such portion of the said street works and all works necessary or incident to the construction thereof or affecting the said railway shall be constructed only according to such plans sections and specifications as shall be approved as aforesaid and

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under the superintendence and to the reasonable satisfaction of the principal engineer and at the cost charges and expenses in all respects of the Corporation :

- (3) Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not in the construction of Street Works Nos. 2 and 4 by this Act authorised interfere with the structure of the existing bridge carrying the railway of the company over Cinderhill Road nor do any work which will injuriously affect the foundations thereof :
- (4) Notwithstanding the approval of plans sections and specifications or supervision by or completion to the satisfaction of the principal engineer as aforesaid and notwithstanding the compliance by the Corporation with the provisions of this section if during and in consequence of the execution of the said street works the said railway of the company or any of the works connected therewith respectively or any property of that company shall be injured or damaged such injury or damage shall be forthwith made good by the company who may recover the amount reasonably expended in so doing from the Corporation :
- (5) The Corporation shall not in making the said street works in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the railway and property of the company or any traffic thereon and if at any time or times hereafter the free and uninterrupted and safe user of the railway of the company or any traffic thereon shall be obstructed hindered or interfered with contrary to this enactment the Corporation shall notwithstanding any approval as aforesaid pay to the company all reasonable costs and expenses to which that company may be put as well as reasonable compensation for the loss sustained by them by reason of any such interruption or interference :
- (6) If the company shall at any time after the construction of the said street works desire to widen alter or extend their railway or any of the works or conveniences connected therewith the

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Corporation shall give to the company every reasonable facility for the execution of such widening alteration or extension and any additional expense to which the company may be put in carrying out any such widening alteration or extension by reason of the construction of the said street works shall be repaid to them by the Corporation :

- (7) Except as in subsection (1) of this section otherwise provided if any difference shall arise between the Corporation and the company or their respective engineers with reference to the matters aforesaid such difference shall be referred to and be determined on the application of either party by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers in accordance with the provisions of the Arbitration Act 1889.

PART IV.

RAILWAY.

Power to
Corporation
to construct
railway.

17. Subject to the provisions of this Act the Corporation may make and maintain in the city in the lines and according to the levels shown on the deposited plans and sections the railway hereinafter described with all proper works and conveniences connected therewith (that is to say) :—

A railway commencing by a junction with the London Midland and Scottish Railway (Nottingham and Lincoln Branch) at the foot bridge near Meadow Lane proceeding in an easterly direction and terminating at a point 30 feet or thereabouts measured due west from the west side of Trent Lane.

As to
private
rights of
way over
lands taken
compul-
sorily.

18. All private rights of way over any lands which shall under the powers of this Part of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

19. If the railway is not completed within five years from the passing of this Act then on the expiration of that period the powers by this Part of this Act granted to the Corporation for making and completing the railway or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

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Period for
completion
of railway.

20. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section called "the company") shall unless otherwise agreed between the Corporation and the company apply and have effect—

As to
works on
lands of
London
Midland
and
Scottish
Railway
Company.

(1) Notwithstanding anything contained in this Part of this Act or shown upon the deposited plans and sections the Corporation shall not enter upon take or use any lands of the company or construct any works upon or acquire any right in or easement over such lands or any part thereof save with the consent of the company under their common seal :

(2) All works to be constructed (with such consent as aforesaid) upon the lands of the company or which may affect the property of the company shall be constructed at the expense of the Corporation in accordance with such plans and specifications in such manner and upon such terms in every respect as may be agreed between the Corporation and the company and shall be maintained at the expense of the Corporation.

21. The Corporation may enter into and carry into effect agreements with the London Midland and Scottish Railway Company for and in relation to the construction maintenance and user of the railway authorised by this Act and the construction maintenance and user of additional sidings works and conveniences upon or in the neighbourhood of the said company's lands.

Power to
enter into
agreements
with London
Midland and
Scottish Rail-
way Company
with regard
to railway.

PART V.

TRAMWAYS TROLLEY VEHICLES AND OMNIBUSES.

22.—(1) The Corporation may subject to the provisions of this Act construct maintain use and work in accordance with the deposited plans and sections the

Construc-
tion of
tramways.

A.D. 1925. — tramways hereinafter described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places posts poles brackets wires stables carriage-houses engine-houses sheds buildings works and conveniences connected therewith :

Provided that nothing in this Part of this Act or in any Act wholly or in part incorporated therewith shall authorise any interference with electric lines and works of any undertakers under the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 (Power of undertakers to alter position of wires and pipes) of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(2) The works hereinbefore referred to and authorised by this section are—

Tramway No. 1 (double line 3 furlongs 4·85 chains in length) commencing in Woodborough Road in the city by a junction with an existing tramway of the Corporation at a point 10 feet or thereabouts measured in a westerly direction from the intersection of the centre lines of Woodborough Road and Porchester Road thence proceeding in a north-easterly direction into and along Woodborough Road and Mapperley Plains partly in the urban district of Arnold and partly in the urban district of Carlton and terminating in Mapperley Plains at a point on the boundary between the urban district of Arnold and the parish of Gedling in the Basford Rural District 200 feet or thereabouts measured in a north-easterly direction from the intersection of the centre lines of Mapperley Plains and Westdale Lane ;

Tramway No. 2 (double line 1 mile 1 furlong 9·65 chains in length) wholly situate in Derby Road in the city commencing at a point 200 feet or thereabouts measured in a south-westerly direction from the intersection of the centre lines of Derby Road and Beeston Lane and terminating at a point one hundred feet or thereabouts measured in a north-easterly direction from the intersection of the centre lines of Derby Road and Gregory Street by a junction with an existing tramway of the Corporation.

23. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for constructing such tramways or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

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Period for
completion
of tram-
ways.

24.—(1) The tramways authorised by this Act and the works connected therewith shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the Order and Acts hereinafter mentioned and of the enactments incorporated therewith respectively and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramways and works as if they had formed part of the tramways and works authorised by the said Acts.

Tramways
to form
part of
tramway
under-
taking of
Corpora-
tion.

(2) The Order and Acts hereinbefore referred to are—

The Nottingham and District Tramways Order 1877;

The Nottingham Improvement Act 1897;

The Nottingham Corporation Act 1899;

The Nottingham Corporation Act 1900;

The Nottingham Corporation Act 1902;

The Nottingham Corporation Act 1905;

The Nottingham Corporation Act 1910;

The Nottingham Corporation Act 1913;

The Nottingham Corporation Act 1920; and

The Nottingham Corporation Act 1923:

Provided that—

In the exercise of the powers conferred on the Corporation by the said Order and Acts with reference to the tramways authorised by this Act no post or other apparatus shall be erected on the carriageway except with the consent of the Minister of Transport.

25. For the protection of the county council of the administrative county of Nottingham (in this section referred to as “the county council” and “the county”

For protec-
tion of
Notting-
hamshire

A.D. 1925. respectively) the following provisions shall unless otherwise agreed between the county council and the Corporation and notwithstanding anything contained in any Act or Order relating to the tramway undertaking of the Corporation apply and have effect (that is to say):—
County Council.

- (1) The Corporation shall at their own expense and to the reasonable satisfaction of the county council pave and maintain so much of the main road on which Tramway No. 1 shall be laid as lies between the outer rails of the tramway and as extends eighteen inches beyond such rails with such granite cubes or setts or other paving as the county council or their surveyor may reasonably approve :
- (2) The Corporation in setting back the kerb of the footpath for the purpose of increasing the width of the carriageway in the manner indicated on the deposited plans shall not deviate from the intended new line of footpath as shown on the said plans and the work in connection therewith shall in all respects be carried out to the satisfaction of the county council :
- (3) The Corporation shall construct at their own cost at such places along the route of the said tramway as may be reasonably required by the county council suitable grids or drain boxes and drains to prevent the accumulation of water on the said tramway :
- (4) The Corporation shall on demand pay to the county council the reasonable costs which may be incurred in the repair and reinstatement of so much of the road along which the said tramway shall be laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of the said tramway :
- (5) The Corporation shall at all times during the construction repair or renewal of the said tramway make all necessary and reasonable provisions for the proper regulation of the ordinary traffic of the road and shall keep unobstructed so much of the road as the surveyor of the county

council shall reasonably deem adequate for the free and safe passage thereon of vehicles and foot passengers: A.D. 1925.

- (6) Nothing in this Act contained shall tend to lessen or control any right power or authority now vested in the county council for altering or widening the road on which the said tramway shall be laid or altering widening or rebuilding any culvert or drain vested in or maintainable by the county council but all such rights powers and authorities shall remain in as full force as if this Act had not been passed and the county council shall not be liable to make any compensation whatever for any damage or injury to the said tramway by any such alteration widening or rebuilding Provided that in carrying out any such alteration widening or rebuilding nothing shall be done to impede or interfere with the said tramway for any greater length of time than may be reasonably necessary for the execution of the works of the county council:
- (7) In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall lay before the county council a plan showing the proposed mode of constructing laying down and renewing the Tramway No. 1 and a statement of the materials intended to be used therein and the Corporation shall not commence the construction laying down and renewal of any such tramway or part thereof until such plan and statement have been approved by the Minister of Transport and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the county council as provided by section 26 of the said Act:
- (8) All posts and apparatus hereafter erected by the Corporation in connection with their tramway undertaking in any main road in the county shall be placed in such position as the county council may approve and the route in which any electrical apparatus is to be laid or erected in any such road

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for the purpose of connecting any tramway of the Corporation with a generating station shall also be subject to the approval of the county council :

- (9) In case it is represented in writing to the Minister of Transport by the county council that the Corporation have made default in complying with the provisions of section 9 (Penalty for not maintaining rails and road in good condition) of the Nottingham and District Tramways Order 1877 or with any of the requirements of section 28 of the Tramways Act 1870 the Minister of Transport may if he thinks fit direct an inspection by an officer to be appointed by him and if the officer reports that the default has been proved to his satisfaction then and in every such case a copy of that report certified by a secretary or an assistant secretary of the Ministry of Transport may be adduced as evidence of the default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by the said section 9 imposed :
- (10) Any dispute or difference which may arise between the Corporation and the county council under this section shall be determined by an arbitrator to be appointed on the application of either party by the Minister of Transport and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For further
protection
of London
and North
Eastern
Railway
Company.

26. The following provisions for the further protection of the London and North Eastern Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the Corporation and the company apply and have effect :—

- (1) In this section the word "apparatus" includes standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working trolley vehicles under or in pursuance of this Part of this Act :
- (2) All works authorised by or in pursuance of this Part of this Act where the same shall be made upon across under or over any bridge or the approaches thereto or other work belonging to

or maintainable by the company or will otherwise affect the same (in this section called "the works") shall be executed so as not to affect injuriously the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and reasonably approved by the company or in case of difference between them and the Corporation by an arbitrator to be appointed as hereinafter provided Provided that if the company do not within twenty-eight days after such submission signify their disapproval of such plans sections and specifications they shall be deemed to have approved thereof All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined by arbitration and under the superintendence (if the same be given) and to the reasonable satisfaction of the company The Corporation shall so maintain and use the works and apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the works or apparatus upon across under or over the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

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- (3) The Corporation shall on demand pay to the company the reasonable expense of lighting and watching the railway canal and property of the company during the execution or repair by the Corporation under or in pursuance of this Part of this Act of any work or apparatus affecting any bridge or other work belonging to or maintainable by the company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them or otherwise :
- (4) The Corporation shall not in any manner in the execution maintenance user or repair of any of

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their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway canal or other work belonging to or maintainable by the company or any traffic thereon :

- (5) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of the works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or canal or to any company or person using the same by or by reason of the execution or failure of any of the works or apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the works or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or any such default or omission :
- (6) If the company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the works and apparatus are laid or to widen or alter any railway or canal thereunder or thereover the Corporation shall afford to the company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the works and apparatus or any part thereof be taken up diverted or removed and if the company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the works and apparatus shall be stopped or delayed or such part of the works or apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they

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shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the works and apparatus shall be restored with all practicable despatch and the company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :

- (7) The Corporation shall from time to time pay to the company any additional expense which the company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the company by reason of the existence or user of the works or apparatus :
- (8) If and when the company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (9) If having regard to the proposed position of the works or apparatus or any part thereof of the Corporation authorised by or in pursuance of this Part of this Act when considered in relation to the position of the works of the company at any point where the works or apparatus or any part thereof will be constructed over or under the railway canal or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or

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apparatus of the company shall be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the company by the Corporation :

- (10) The Corporation shall not for the purposes of this Part of this Act make attachments to any part of any bridge or other property of the company without the consent in writing of the engineer of the company such attachments if allowed to be temporarily removed at any time when required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge or other property :
- (11) If any difference arises under this section between the Corporation and the company the same shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed at the request of either party by the President of the Institution of Civil Engineers.

Power to
use trolley
vehicles.

27. The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may work the same along the following routes :—

Route A Commencing in Vernon Road at the intersection of the centre lines of Nottingham Road and Vernon Road thence proceeding along Nottingham Road Sherwood Rise Gregory Boulevard Mansfield Road Milton Street Upper Parliament Street King Street and Queen Street and terminating at the junction of King Street with Long Row :

Route B Commencing at the junction of King Street with Long Row thence proceeding along Long Row the Market Place South Parade and Exchange and terminating at the junction of King Street with Long Row :

Route C Commencing in Upper Parliament Street at a point eighty feet or thereabouts measured in a westerly direction from the intersection of the centre lines of Upper Parliament Street and Milton Street thence proceeding along Upper Parliament Street Lower Parliament Street King

Edward Street St. Ann's Well Road and The Wells Road and terminating at the junction of The Wells Road with Kildare Road :

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Route D Commencing in the Market Place at a point fifty feet or thereabouts measured in a north-westerly direction from the intersection of the centre lines of Friar Lane and Wheeler Gate thence proceeding along the Market Place Wheeler Gate Albert Street Lister Gate Greyfriar Gate Canal Street Wilford Street and Wilford Road and terminating at the junction of Wilford Road with Colliery Road :

Provided that before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval.

28. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the Corporation and the company apply and have effect :—

For further protection of London Midland and Scottish Railway Company.

- (1) In this section the word "apparatus" means standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working the trolley vehicles under or in pursuance of this Part of this Act :
- (2) The apparatus where the same shall be laid upon across under or over any bridge or the approaches thereto or other work belonging to or maintainable by the company or will otherwise affect the same shall be executed so as not to affect injuriously the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and reasonably approved by the company or in case of difference between them and the Corporation by an arbitrator to be appointed in accordance with the provisions of this Act Provided that if the company do not within twenty-eight days after such submission signify their disapproval of such plans

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sections and specifications they shall be deemed to have approved thereof. All such apparatus shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined by arbitration and under the superintendence (if the same be given) and to the reasonable satisfaction of the company. The Corporation shall so construct maintain and use the apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

- (3) The Corporation shall on demand pay to the company the reasonable expense of lighting and watching the railway and property of the company which shall be necessary during and in consequence of the execution or repair by the Corporation under or in pursuance of this Part of this Act of any apparatus affecting any bridge or other work belonging to or maintainable by the company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them :
- (4) The Corporation shall not in any manner in the execution maintenance user or repair of any of the apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to or maintainable by the company or any traffic thereon :
- (5) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure

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of any of the apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors in connection with the apparatus or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :

- (6) If the company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway thereunder or thereover the Corporation shall afford to the company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the apparatus be taken up diverted or removed and if the company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable despatch and the company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :
- (7) The Corporation shall from time to time pay to the company any additional expense which the company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the

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last preceding subsection or in the maintenance of any bridge approach or other work of the company by reason of the existence or user of the apparatus :

- (8) If and when the company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed under or in pursuance of this Part of this Act the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (9) If having regard to the proposed position of any apparatus when considered in relation to the position of the works of the company at any point where any apparatus will be constructed over or under the railway or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the company by the Corporation :
- (10) The Corporation shall not for the purposes of this Part of this Act make attachments to any bridge or other property of the company without the consent in writing of the engineer of the company which shall not be withheld unreasonably such attachments if allowed to be temporarily removed at any time when required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge :

- (11) If any difference shall arise between the Corporation and the company or their respective engineers with reference to the matters aforesaid such difference shall be referred to arbitration. A.D. 1925.
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29. The following provisions of the Act of 1913 and of the Act of 1923 shall extend and apply to the provision maintenance and running of trolley vehicles under the powers of this Act :—

Application
of pro-
visions of
Acts of 1913
and 1923
relating
to trolley
vehicles.

The Act of 1913—

- Section 14 (Fares rates and charges) as amended by this Act ;
Section 16 (Application of provisions of enactments relating to tramway undertaking of Corporation) ;
Section 17 (For protection of Postmaster-General) ;
Section 18 (Duties on licences for trolley vehicles) ;
Section 20 (Shelters or waiting rooms) ;
Section 21 (Penalty for malicious damage).

The Act of 1923—

- Section 22 (Power to appoint stages) Provided that no starting or stopping place shall be appointed so as to interfere with or render less convenient the access to or exit from any railway station or dépôt.

30.—(1) The following provisions of the Tramways Act 1870 incorporated with this Act shall so far as the same are applicable apply to the trolley vehicles of the Corporation and such provisions shall be read and have effect as if the works to be constructed in the streets or roads for moving such trolley vehicles by electrical power were tramways and as if the said trolley vehicles were carriages used on tramways :—

Applica-
tion of
Tramways
Act 1870
to trolley
vehicles.

Part II. (Relating to the construction of tramways) except sections 25 28 and 29 ;

- Section 41 (Tramways to be removed in certain cases) ;

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- Section 46 (Byelaws by local authority Promoters may make certain regulations);
- Section 47 (Penalties may be imposed in bye-laws);
- Section 48 (Power to local authority to license drivers conductors &c.);
- Section 49 (Penalty for obstruction of promoters in laying out tramway);
- Section 51 (Penalty on passengers practising frauds on the promoters);
- Section 53 (Penalty for bringing dangerous goods on the tramway);
- Section 55 (Promoters or lessees to be responsible for all damages);
- Section 56 (Recovery of tolls penalties &c.);
- Section 57 (Right of user only);
- Section 60 (Reserving powers of street authorities to widen &c. roads); and
- Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

Vehicles not
to be
deemed
light loco-
motives.

31.—(1) The trolley vehicles of the Corporation shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to that exception neither that Act nor the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the said trolley vehicles.

Corporation Act, 1925.

(2) Section 12 (Vehicles not to be deemed light locomotives or motor cars) of the Act of 1913 is hereby repealed. A.D. 1925. —

(3) The trolley vehicles of the Corporation shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

32.—(1) No trolley vehicle (including the weight of its load) used by the Corporation under the authority of this or any other Act shall exceed a weight of ten tons and the said trolley vehicles and the electrical equipment thereof shall be of such form and construction as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport. Weight of vehicles and approval of construction by Minister of Transport.

(2) Section 13 (Approval of vehicles by Board of Trade) of the Act of 1913 is hereby repealed.

33. Notwithstanding anything contained in the Act of 1913 the Corporation may carry on their trolley vehicles (1) passengers' luggage and parcels not exceeding fifty-six pounds in weight and may demand and take such rates and charges for the carriage thereof as may from time to time be approved by the Minister of Transport and (2) dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger. Power to carry certain goods and luggage and dogs on trolley vehicles.

34.—(1) Application for a revision of the maximum fares and charges authorised by section 10 (Power to provide and run motor omnibuses) of the Act of 1913 may be made by the Corporation or by the local authority of any district in which omnibuses of the Corporation are run. Further provision with regard to fares and charges on omnibuses.

(2) The Corporation may carry on their omnibuses (1) passengers' luggage and parcels not exceeding fifty-six pounds in weight and may demand and take such rates and charges for the carriage thereof as may from time to time be approved by the Minister of Transport and (2) dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger.

(3) Every passenger carried on the omnibuses of the Corporation may take with him personal luggage not

A.D. 1925. — exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

(4) The fares and charges which the Corporation are for the time being authorised to take in respect of their omnibuses shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares and charges appoint.

PART VI.

EXTENSION OF WATER LIMITS.

Extension
of limits of
supply for
water.

35.—(1) From and after the passing of this Act the limits within which the Corporation may supply water shall extend to and include the parish of Edwalton in the rural district of Bingham and the parishes of Bramcote and Chilwell in the rural district of Stapleford in the county of Nottingham and the Corporation may for the purposes of such supply exercise within the said parishes the same powers as they are authorised to exercise under the Acts and Orders relating to their water undertaking and shall be subject to the same obligations as they are subject to in respect of water supply under the said Acts and Orders.

(2) The provisions of section 33 of the Nottingham Corporation Act 1923 shall be read and construed as if the words “and Stapleford” had been inserted in the said section after the word “Bingham” and as if the parishes mentioned in the preceding subsection had been included within the limits within which the Corporation were authorised to supply water at the date of the passing of that Act.

PART VII.

ESTABLISHMENT OF YARN AND TEXTILE TESTING BUREAU BY THE COLLEGE.

Authority
to establish
yarn and
textile
testing
bureau.

36.—(1) The college shall be at liberty to acquire by agreement any lands they may deem necessary not exceeding two acres in extent and to appropriate any lands now or hereafter belonging to them not required for any other purpose and to erect buildings thereon and

A.D. 1925.

provide all appliances engines apparatus and plant which they may think fit for establishing maintaining and working a yarn and textile testing bureau in the city for the purpose of ascertaining and certifying the true weight length strength and twist of articles of trade and commerce commonly used in the city and known as yarns and fabrics whether composed of wool cotton silk or any other fibre and other matters and things of similar character and also the true weight quality and condition of yarns and fabrics for any other purpose of the like nature in order that persons whether buyers or sellers desirous of having any such articles tested and certified may effect such object by means of such bureau on payment of reasonable charges tolls and dues for the same and for warehousing such articles matters and things for the purpose of such testing.

(2) The college shall provide and maintain standards of weight and measure of a form and material approved by the Board of Trade with which the weights and measures in use shall be compared from time to time. Such standards shall be submitted to the Board of Trade for verification not less than once in every five years.

37. For the purpose of carrying into effect the establishment maintenance and working of such yarn and textile testing bureau the college shall have full power and authority—

For carrying
out business
of testing
bureau.

(1) To appoint and employ on such terms and conditions as they may think fit all such officers and servants as they may deem necessary :

(2) To make byelaws and from time to time to alter vary and rescind the same for the conduct and management of such bureau and of all matters connected therewith and of persons using any such bureau for testing purposes and for the enforcement of such byelaws. But no such byelaw or any alteration or rescission of any such byelaw shall have any effect unless approved by the Board of Trade and every such byelaw shall be deemed and taken in all cases to be sufficiently proved on production of a copy thereof sealed with the common seal of the college and purporting to be signed by the honorary secretary of the college :

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(3) To grant certificates in such form as the college may from time to time deem proper respecting the articles matters and things submitted to the college at any such bureau for examination testing and certificate :

(4) To charge such tolls and dues as the college may prescribe for making any such examination or test and for the granting of any such certificate and for warehousing such articles matters and things and from time to time to vary or alter such tolls and dues but no such tolls or dues shall be charged or chargeable unless approved of by the Board of Trade.

Validity of
certificate.

38. Every certificate issued by the college under the aforesaid powers shall be under their common seal and every such certificate or any copy thereof verified under the hand of the honorary secretary of the college or such other person as may be appointed by the college shall be receivable in evidence in any court of judicature or in any proceedings at law or in equity or bankruptcy or in any criminal proceeding.

Protection
of college.

39. The college shall not incur any liability in respect of any such certificate so issued as aforesaid nor in respect of any yarns fabrics or loose textile materials and other matters and things of the like character deposited with them for examination testing or certificate beyond such as may arise from negligence or misconduct on the part of any officer or servant in their employment.

Recovery
of dues
payable to
college.

40. The college are hereby empowered to recover any dues or tolls payable to them in respect of the warehousing examining testing and certifying of any such articles as are mentioned in the last preceding section of this Act in a summary manner as a civil debt The college shall be at liberty if they think fit in addition to any such remedy to detain in their possession any such article warehoused examined tested or certified by them by way of lien thereon in respect of all charges incurred by or payable to them thereon and on warrant of any justice as aforesaid to seize and sell such article.

41. Any moncoys coming to the hands of the college in respect of textile testing business over and above the outgoings in respect thereof in any year shall be applied by the college towards furthering the work of the college in such manner as the college may think fit.

A.D. 1925.

Application
of surplus
income from
textile test-
ing business.

PART VIII.

POLICE HACKNEY CARRIAGES &C.

42.—(1) Subject to the provisions of this Act the Corporation may provide suitable places within the city (hereinafter called “ parking places ”) on any land not forming part of a street repairable by the inhabitants at large at which vehicles or vehicles of any specified class or description may wait and may take such steps as may be necessary to adapt any such place for use as a parking place.

Provision
of parking
places.

(2) The Corporation may make regulations imposing conditions subject to which vehicles may be admitted into any parking place provided under this section and may by regulations prescribe a table of reasonable charges to be taken by them for the use of any such parking place and for the services of any attendant provided by them thereat and may prescribe different charges for different classes or descriptions of vehicle.

(3) Subject to the consent of the Minister of Health and to such conditions as he may impose the Corporation may appropriate for the purpose of this section any land vested in them.

(4) The expenses incurred by the Corporation in the exercise of their powers under this section shall be defrayed as part of the expenses of the execution of the Public Health Acts and for that purpose money may be borrowed by the Corporation in the like manner and subject to the like conditions as for the purposes of those Acts.

43.—(1) Subject to the provisions of this Act the Corporation may by order determine that any part of any street within the city repairable by the inhabitants at large shall be set apart as a parking place at which vehicles or vehicles of any specified class or description may wait and any such order may be varied or rescinded by a subsequent order.

Parking of
vehicles in
streets.

A.D. 1925.

(2) The Corporation may make regulations with respect to the use by persons of any such parking place and the use of the street by any person in accordance with those regulations shall not be deemed to be unlawful.

(3) An exercise by the Corporation of their powers under this section shall not render them subject to any liability in respect of loss of or damage to any vehicle while using a parking place or the fittings or contents of any such vehicle.

(4) Nothing in this section shall authorise the Corporation to set apart or maintain as a parking place any part of a street where the use of such part for that purpose would obstruct the reasonable flow of traffic along the street or unreasonably interfere with the user of the street by the public at large or prevent reasonable access to any premises or land abutting on or adjoining the street or cause a nuisance to any occupier of such premises or land.

Stands for
omnibuses.

44.—(1) Subject to the provisions of this Act the Corporation may by order fix and determine stands for omnibuses in the city and may by any such order fix and determine the number of omnibuses which may stand at any particular stand and may vary and alter any stands so fixed and determined and the number of omnibuses to be allowed at any stand and may regulate and prescribe the days or times during which omnibuses may stand at any particular stand.

(2) No stand so fixed and determined shall be used for hackney carriages.

(3) Any person who shall contravene the provisions of this section or the provisions of any order made under this section (when such order shall have taken effect) shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) The provisions of section 6 (Byelaws) of the Town Police Clauses Act 1889 with regard to fixing the stands for omnibuses and the points at which they may stop a longer time than is necessary for the taking up and setting down of passengers shall cease to apply in the city.

(5) "Stand" in this Part of this Act means a place where omnibuses may stop a longer time than is necessary for the taking up and setting down of passengers desirous of entering or leaving the same.

45.—(1) The Corporation may appoint with or without remuneration such officers as may be necessary for the superintendence of any parking place provided or set apart under this Act and for securing the observance of any regulations relating thereto.

A.D. 1925.

—
Provision of
attendance
and publica-
tion of
regulations.

(2) A copy of any regulations made under this Act and applying to a parking place shall be exhibited on or as nearly as may be adjacent to the parking place to which they relate.

46.—(1) Where the Corporation propose—

Notice and
appeal.

(a) to appropriate land for the purposes of the section of this Act the marginal note whereof is “Provision of parking places”; or

(b) to make an order setting apart a part of a street as a parking place under the section of this Act the marginal note whereof is “Parking of vehicles in streets” or fixing and determining a stand for omnibuses under the section of this Act of which the marginal note is “Stands for omnibuses”;

notice of the proposal shall be published in a newspaper circulating within the city and shall be posted for not less than fourteen days on the land proposed to be appropriated as aforesaid or at each end of the part of the street proposed to be set apart as a parking place or to be fixed and determined as a stand for omnibuses and in the case of an order fixing and determining a stand for omnibuses notice in writing shall be served on every omnibus proprietor holding a licence to ply for hire in the city.

(2) Every such notice shall contain—

(a) a description of the area proposed to be appropriated or set apart as a parking place or to be fixed and determined as a stand for omnibuses;

(b) a statement of the date (not being less than twenty-one days from the date of publication or service of the notice) by which any person affected by the proposal may make objections or representations to the Corporation thereon in writing; and

A.D. 1925.

(c) an intimation that an appeal to a court of summary jurisdiction may be made against the proposed appropriation of the land or the intended order as the case may be by any person thereby aggrieved.

(3) The Corporation shall consider any objection or representation duly made to them as aforesaid and shall notify their decision to the person making the same.

(4) Any person deeming himself aggrieved by the decision of the Corporation so notified to him may within twenty-one days after the receipt of such notification appeal to a court of summary jurisdiction who may make such order in the matter and may attach such conditions thereto as they deem proper and may make such order as to costs as they think fit and any such costs shall be recoverable as a civil debt and further any person deeming himself aggrieved by any such order of a court of summary jurisdiction may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and with regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

(5) If after the expiration of twenty-one days after the receipt of such notification as aforesaid no appeal is made as aforesaid an order of the Corporation referred to in this section shall forthwith have effect and if an order is made by a court and no appeal is made in respect of it such order shall take effect on the day named in such order.

As to use
of stands by
omnibuses.

47.—(1) Subject to the provisions of this Act the Corporation may by order prescribe the stands in the city fixed and determined under the foregoing provisions of this Act which are to be used exclusively by omnibuses of any particular class or description or used on any particular route or running according to a published time-table and may vary and alter any such order.

(2) Notice of any such intended order or variation of an order shall be published in a newspaper circulating within the city and shall be posted for not less than fourteen days upon the stand or stands to which it relates and notice in writing of such intended order or variation of an order shall be served on every omnibus proprietor holding a licence to ply for hire in the city.

A.D. 1925

(3) Any such notice shall state that any person deeming himself aggrieved by the order may within twenty-one days from the date of publication or service of the notice make representation to the Minister of Transport objecting thereto and stating the grounds of his objection and at the same time shall send a copy of such representation to the town clerk.

(4) If after the expiration of twenty-one days after the publication and service of the notice referred to in subsection (2) of this section no representation is made to the Minister of Transport the order of the Corporation shall forthwith have effect.

(5) If a representation is made in accordance with this section the order shall not come into force unless and until it is approved by the Minister of Transport.

(6) Before approving any such order to which objections shall have been duly made the Minister of Transport shall consider the objections and (after giving the objectors and the Corporation an opportunity of being heard) may approve the order with or without modifications or may disallow the same and if he approves the order shall fix the date when it shall come into force.

(7) A copy of any such order so approved by the Minister and an intimation of the date when it shall come into force shall be published posted and served in accordance with the provisions of subsection (2) of this section.

48.—(1) In the foregoing sections of this Act relating to parking places the word "vehicle" does not include any hackney carriage or omnibus as defined in the Town Police Clauses Acts 1847 and 1889 which is licensed to ply for hire within the city.

Definition
of vehicle
and limita-
tion of
powers.

(2) The powers conferred by the sections aforesaid shall only be exercised where such exercise is reasonably required for the purpose of relieving congestion or facilitating traffic in the city.

49. Where a police constable in uniform in pursuance of any instructions general or special is regulating the traffic at any junction or crossing in any street any person driving or propelling any vehicle who wilfully neglects or refuses to stop the vehicle or to make it proceed or to make it keep to a particular line of traffic

Traffic
control.

A.D. 1925. — when so directed (by word of mouth or sign) by any such police constable in execution of his duty shall on summary conviction be liable in respect of each offence to a fine not exceeding forty shillings or in the case of a second or subsequent conviction to a fine not exceeding five pounds.

Public motor vehicles not to be filled with petrol when occupied by passengers.

50.—(1) No petrol tank attached to a hackney carriage omnibus or public motor vehicle shall be filled with petrol in the city while the hackney carriage omnibus or public motor vehicle is occupied by passengers.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

Construction of motor hackney carriages to be approved by Corporation.

51. The Corporation may as a condition of their licensing any motor omnibus or other motor hackney carriage require that the construction of such omnibus or hackney carriage as at the date when the licence was granted shall not be altered without the approval of the Corporation while the licence is in force. Any person altering the construction of a motor omnibus or other motor hackney carriage in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Byelaws as to hackney carriages.

52. The power to make byelaws conferred upon the Corporation by section 68 of the Town Police Clauses Act 1847 shall be extended so as to include power to make byelaws for all or any of the following purposes (that is to say):—

- (a) For the inspection of every hackney carriage at all reasonable times when required by the chief constable or some officer authorised by him in writing:
- (b) For the cessation of user of a hackney carriage which at any time fails in any way to comply with the requirements of the byelaws respecting the fitness of hackney carriages for public hire:
- (c) For the fixing of fares to be charged for the use of any motor hackney carriage by time and distance and by time and distance combined.

53. No person shall be entitled to drive a motor vehicle licensed by the Corporation as a hackney carriage (which expression shall in this section include an omnibus) unless he shall have satisfied the Corporation of his ability to drive and for that purpose the Corporation may impose such reasonable test as they may think fit.

A.D. 1925.

Power to
impose
test on
motor
drivers.

54.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the city to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

Inspection
and certifi-
cation of
taximeters.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

55. An occasional licence for a public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

Power to
grant
occasional
licences.

PART IX.

MATERNITY HOMES.

56.—(1) On and after the first day of January nineteen hundred and twenty-six (which date is in this Part of this Act referred to as "the prescribed date") it shall not be lawful for any person to carry on a maternity home in the city unless the name of such person and the premises used or represented as being or intended to be used for the purpose of such home are registered with the Corporation.

Registra-
tion of
maternity
homes.

A.D. 1925.

(2) Any person requiring registration in respect of any such home shall make application in writing to the Corporation and shall in such application state—

- (a) his full name;
- (b) his age nationality and technical qualifications (if any);
- (c) his private address or in the case of an application by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or body and so far as may reasonably be required the names and private addresses of the persons directly or indirectly responsible for the management of such company society association or body;
- (d) the name under which and the address at which such home is carried on or proposed to be carried on; and
- (e) such further information (if any) as the Corporation may reasonably require with respect to the person or premises to be registered or the number of patients to be accommodated at any one time and the equipment in such premises;

and when making such application shall pay to the Corporation such fee as they may fix not exceeding five shillings.

(3) Every person carrying on any such home at the date of the passing of this Act and requiring registration in respect thereof shall make application for such registration within one month after the date or (if more than one) the latest date of publication of the advertisements with regard to this Part of this Act referred to in the section of this Act whereof the marginal note is "Notice of provisions to be given."

(4) Subject as in this section provided the Corporation shall as soon as reasonably practicable after the receipt of an application under the provisions of this section (and not later in the case of an application under subsection (3) of this section than the prescribed date) register the name of the applicant and the premises specified in his application.

(5) The Corporation by order to be served on the person carrying on or proposing to carry on any such home may refuse to register the name of such person or

the premises used or represented as being or intended to be used for the purposes of such home or may cancel the registration of such person or premises on the ground that—

A.D. 1925.
—

(a) Such person is under the age of twenty-one years;
or

(b) Such person is unsuitable to carry on such home;
or

(c) The premises or their equipment are or is unsuitable for the purposes of a maternity home; or

(d) The premises are used or intended to be used for the accommodation at any one time of an excessive number of patients; or

(e) The premises or any other premises used for any purpose in connection with such first-mentioned premises or with any business or occupation carried on therein are being used for any immoral purpose.

(6) Before making any such order the Corporation shall give to the person proposed to be served therewith not less than seven days' previous notice in writing stating their intention to make the order and the grounds on which the order is proposed to be made and on written application made to them by such person within seven days after the giving of such notice they shall afford to such person an opportunity of being heard against the order.

(7) Any such order cancelling any registration shall take effect at the time specified in the order not being less than fourteen days after the service thereof but in the event of an appeal against any such order the order shall not come into operation unless and until it has been confirmed on appeal or the appeal has been abandoned.

(8) Any person aggrieved by any such order may appeal to a court of summary jurisdiction provided that such appeal is made within fourteen days after the order has been served upon him.

The court after considering any representations made on behalf of the Corporation may if it thinks fit confirm such order or direct the Corporation to withdraw such order and as soon as reasonably practicable the Corporation shall give effect to such direction.

A.D. 1925.

Byelaws
as to
homes.

57.—(1) The Corporation may make byelaws prescribing the records to be kept with respect to the patients received the children born and the business carried on at a maternity home and requiring the notification to the Corporation of any death occurring thereat the cause of death and whether an inquest was held.

(2) Every person carrying on a maternity home shall keep exhibited in a suitable place (to be approved by the Corporation) in such home a copy of the byelaws in force under this Part of this Act.

Powers as
to entry
and inspection.

58. Any officer duly authorised by the Corporation in that behalf may subject to such regulations (if any) as may be made by the Corporation at all reasonable times enter and inspect any premises which are used or which such officer has reasonable cause to believe are used for the purposes of a maternity home and the entries in any records required to be kept in connection therewith.

Penalties
for offences
in respect of
maternity
homes.

59. Subject to the provisions of this Part of this Act—

(1) Every person who carries on a maternity home in contravention of the provisions of this Part of this Act shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding twenty pounds and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a penalty impose any period of imprisonment not exceeding three months :

(2) Every person who—

(a) refuses to permit any officer of the Corporation to enter or inspect any premises which such officer is authorised under the provisions of this Part of this Act to enter and inspect or the records to be kept pursuant to any byelaw made under the said provisions or obstructs any such officer in the execution of his duty under such provisions or under the provisions of any such byelaw as aforesaid; or

(b) carries on a maternity home in contravention of the provisions of any such byelaw; or

A.D. 1925.

(c) issues publishes or displays or causes to be issued published or displayed any advertisement relating to a maternity home which is not registered in accordance with the provisions of this Part of this Act after the expiration of a period of seven days after the Corporation have given him written notice that the registration of such home has been refused or cancelled under the provisions of this Part of this Act;

shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds :

- (3) The court may in addition to imposing a penalty under this section order the cancellation of the registration :

Provided that a person who has appealed to a court of summary jurisdiction in accordance with the provisions of this Part of this Act against an order made by the Corporation thereunder cancelling registration shall not until such order has been confirmed on appeal or has been abandoned be liable to any proceedings under this section for the offence of carrying on a maternity home in contravention of the provisions of this Part of this Act or of any byelaw made thereunder.

60. Where any company registered under the Companies Acts 1862 to 1907 or under the Companies Acts 1908 to 1917 or any Act amending the same commits any offence for which a penalty is provided by this Part of this Act proceedings may be taken in respect of such offence against all or any of the directors and managers of such company as well as or instead of against the company and every such director or manager shall be liable on conviction to the like penalty as if he were the person committing the offence unless he prove to the satisfaction of the court—

Directors
of com-
panies to
be person-
ally liable
for
penalties.

- (1) That the act which constituted the offence took place without his knowledge consent or connivance; and
- (2) That he was not guilty of any negligence in regard to securing the proper execution of this Part of this Act.

A.D. 1925.

—
Saving for
homes
carried on
by medical
practi-
tioners.

61. Subject as hereinafter provided the provisions of this Part of this Act shall not apply in the case of a maternity home carried on by a duly registered medical practitioner with respect to which there has been lodged with the Corporation a certificate in a form to be approved by them and signed by two duly registered medical practitioners practising or residing in the city not being in partnership with such first-mentioned medical practitioner or with each other and not having any financial or other interest in such home to the effect that the premises used or represented as being or intended to be used for such home and the equipment provided at such premises are in all respects suitable for the purpose and that the medical practitioner carrying on or proposing to carry on such home is a suitable person to carry on the same :

Provided that any such certificate shall not be valid—

- (1) With respect to any person or premises other than the person or premises specified therein ;
or
- (2) For a period extending beyond the thirty-first day of January next following the date of the certificate.

Saving for
certain
premises.

62.—(1) Notwithstanding anything contained in this Part of this Act the foregoing provisions thereof shall not apply in the case of—

- (a) any hospital infirmary institution or other establishment maintained or controlled by any Government department or local authority or any other authority or body constituted by Parliament or incorporated by Royal Charter or any hospital or home towards the maintenance of which any grant is made from the Exchequer ; or
- (b) any institution or home for the training of persons desirous of becoming midwives which is for the time being approved by the Central Midwives Board constituted under the Midwives Acts 1902 and 1918 ; or
- (c) any maternity home in which only relatives of the person carrying on such home are received for the purposes of childbirth.

(2) For the purposes of this section the expression "relatives" means sisters daughters granddaughters nieces aunts or mothers by consanguinity or affinity and in the case of persons of illegitimate birth persons who would be so related if legitimate.

A.D. 1925.

63.—(1) Public notice of the effect of the provisions of this Part of this Act shall be given by advertisement in at least two newspapers published or circulating in the city.

Notice of provisions to be given.

(2) The production of a copy of two such newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART X.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

64.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenues fund and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the fourth column thereof (namely) :—

Power to borrow.

1	2	3	4
Purpose.	Amount.	Charge.	Period for repayment.
(a) For the purchase of lands for and the construction of the street works and the laying out of Queen's Walk as a road authorised by this Act.	£ 254,290	The district fund and general district rate.	Sixty years from the date or dates of borrowing.
(b) For the purchase of lands for and the construction of the railway authorised by this Act.	7,250	The district fund and general district rate.	Forty-five years from the date or dates of borrowing.

A.D. 1925.

1	2	3	4
Purpose.	Amount.	Charge.	Period for repayment.
(c) For and in connection with the construction of the tramways authorised by this Act.	£ 52,407	The revenue of the tramway undertaking and the district fund and general district rate.	Twenty-five years from the date or dates of borrowing.
(d) For the provision of rolling stock for such tramways.	47,000	The revenue of the tramway undertaking and the district fund and general district rate.	Twenty years from the date or dates of borrowing.
(e) For the provision of trolley vehicles.	56,500	The revenue of the tramway undertaking and the district fund and general district rate.	Ten years from the date or dates of borrowing.
(f) For the electrical equipment of such tramways and trolley vehicles.	21,555	The revenue of the tramway undertaking and the district fund and general district rate.	Twenty years from the date or dates of borrowing.
(g) For and in connection with the extension of water mains and the provision of water pipes and apparatus.	10,000	The revenue of the water undertaking the district fund and general district rate.	Thirty years from the date or dates of borrowing.
(h) For paying the costs charges and expenses of this Act.	The sum requisite.	The district fund and general district rate.	Five years from the passing of this Act.

(2) (a) The Corporation with the consent of the Minister of Transport may also borrow such further money as may be necessary for any of the purposes of

the tramway trolley vehicle or omnibus undertakings of the Corporation and with the consent of the Minister of Health may borrow such further money as may be necessary for any of the purposes of this Act other than the purposes of those undertakings. A.D. 1925.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister with whose consent such money is borrowed.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister with whose consent such money is borrowed.

(3) The provisions of this section prescribing the revenue funds or rates which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by section 25 (Power to use one form of mortgage for all purposes) of the Act of 1910.

65. The following sections of the Acts of 1897 1905 1910 1913 and 1923 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if those sections with the necessary modifications were set out in this Act (namely):—

Incorpora-
tion of
further
provisions
from Acts of
1897 1905
1910 1913
and 1923.

Act of 1897—

Section 25 (Certain regulations of Public Health Act as to borrowing not to apply);

Section 26 (Mode of raising money);

Section 27 (Provisions of Public Health Act as to mortgages to apply);

Section 29 (Mode of payment off of money borrowed);

Section 30 (Sinking fund) Provided that the said section shall be read and have effect as if the words "three pounds ten shillings per centum per annum or such other rate as the Minister of Health may approve" were inserted in subsection (1) (b) of that section instead of the words "three pounds per centum per annum";

A.D. 1925.
—

Section 31 (Protection of lender from inquiry);

Section 32 (Corporation not to regard trusts);

Section 33 (Appointment of receiver);

Section 36 (Application of money borrowed);
and

Section 37 (Inquiries by Local Government Board):

Provided that the said section 37 shall be read and have effect as if the word "five" were substituted for the word "three" in subsection (2) of that section.

Act of 1905—

Section 46 (Expenses of execution of Act);

Section 62 (Recovery of penalties); and

Section 64 (Audit of accounts).

Act of 1910—

Section 26 (Application of section 265 of Public Health Act 1875).

Act of 1913—

Section 27 (Judges not disqualified); and

Section 29 (Powers of Act cumulative).

Act of 1923—

Section 135 (Confirmation of byelaws).

Return to
Minister of
Health with
respect to
repayment
of debt.

66.—(1) The city treasurer shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the city treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the city treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered

by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1925.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment now in force in the city requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

67. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or" of one of the secretaries of the Board."

Inquiries
by Minister
of Trans-
port.

68. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that

Period for
repayment
of loans
under

A.D. 1925.

Municipal
Corpora-
tions Act
1882.

Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Power to
erect shops
&c. as
part of
municipal
buildings.

69. The Corporation may erect as part of any municipal buildings belonging or which may hereafter belong to them shops offices and business or residential chambers and may apply for that purpose any moneys which they are authorised to borrow for the purpose of erecting municipal buildings.

Costs of
Act.

70. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund and general district rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1925.
—

DESCRIBING PROPERTIES OF WHICH PARTS ONLY
MAY BE TAKEN.

City.

Numbers on deposited plans.

Nottingham

3 41 69 79 to 95 100 101 148 to 154 156
157 228 to 236 239 241 to 251 253 254
256 266 268 to 289 291 292 to 294 296
to 302 304 to 307 318 319 328 to 330
332 to 345 351 to 355 359 to 378 382 to
384 386 to 406 408 410 to 443 449 452
to 457 460 to 472 482 507 to 516 518.

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